Employment Tribunal — Claim Form (ET1)

DRAFT — not issued — prepared by claimant's advisers, provided to the Company under cover of correspondence dated 6 January 2026

Section 1 — Claimant	
Name	Mr Daniel James Whitford
Section 2 — Respondent	
Name	Kingsford Group Limited
Address	Kingsford House, 14 Ashbourne Road, Manchester M3 4LP
Section 3 — Early conciliation	
ACAS EC certificate no.	R123456/25/78 (issued 2 January 2026)
Section 8 — Type of claim	Unfair dismissal (incl. constructive); detriment / automatically unfair dismissal for making protected disclosures; breach of contract

Section 8.2 — Grounds of claim (Grounds of Complaint)

1. The Claimant was employed by the Respondent from 1 April 2013, latterly as Group Chief Operating Officer, on a service agreement dated 3 March 2019 entitling him to 12 months' notice and a basic salary of £245,000 with a target bonus of 40%.

2. In July 2025 the Claimant made protected disclosures within the meaning of section 43B of the Employment Rights Act 1996 concerning the recognition of revenue on multi-year membership contracts at the Respondent's Brampton Leisure division, which he reasonably believed tended to show a breach of a legal obligation and the presentation of misleading financial information.

3. Following those disclosures the Claimant was subjected to detriments, namely the removal of his line-management responsibilities in October 2025 and his exclusion from the Board strategy offsite of 25–26 September 2025, contrary to sections 47B and 48 of the Employment Rights Act 1996.

4. The Respondent's conduct, taken together, amounted to a repudiatory breach of the implied term of trust and confidence. The Claimant reserves the right to resign in response to that breach and to claim constructive unfair dismissal, including automatically unfair dismissal under section 103A of the Employment Rights Act 1996 on the ground that the reason (or principal reason) was the making of protected disclosures.

5. The Claimant seeks a basic award, a compensatory award (uncapped by reason of section 103A), a declaration, and compensation for injury to feelings, together with interest.

This draft is provided on a without prejudice basis to indicate the claim the Claimant would bring absent settlement. Full particulars are reserved.